

1/27/26, because of insufficient notice to the Defendant.

The court ordered the Plaintiff to file the order, as well as to notify Defendant of the new date.

There is no record of this matter being called on 3/17/26, and it is unclear why it was calendared for 4/7/26 instead.

Either way, Plaintiff did not file the Order from the 1/27/26 hearing, and did not notify Defendant of either the 3/17/26 date, or the 4/7/26 date.

Disposition

This Motion will be continued to 6/23/26, 9am.

Plaintiff to file the Order, and to provide notice to the Defendant.

7. 9:00 AM CASE NUMBER: L25-00091

CASE NAME: WELLS FARGO BANK, NA VS. MARLIN THROWER

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION FOR AN ORDER DEEMING TRUTH OF THE MATTERS; DEC OF LOPEZ; PROPOSED ORDER**

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed, on 12/18/25, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration of Edgar Lopez (filed 12/18/25).

Plaintiff attached the particular facts at issue in their Exhibit 1 to their Declaration.

The Motion is unopposed.

Plaintiff served Defendant by mail with the Motion and notice of the hearing, on 12/18/25.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. §

2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

In the instant matter, on 10/2/25, Plaintiff requested responses to discovery – namely, Request for Admissions, Set One, which are attached as Exhibit 1 to the Declaration - with a due date of 11/6/25. Defendant did not respond and Plaintiff attempted to meet and confer and also extended the time for a discovery response. Defendant still did not respond.

Disposition

Plaintiff's Motion is granted.

Requests for Admission Numbers One through Nine, attached to the Declaration as Exhibit 1, will be deemed admitted.

Plaintiff to file Order.

8. 9:00 AM CASE NUMBER: L25-02948
CASE NAME: WELLS FARGO BANK, NA VS. DAVID RUPP, AN INDIVIDUAL
*HEARING ON MOTION IN RE: MOTION FOR SUMMARY JUDGMENT
FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Summary Judgment (the "MSJ," or "Motion"), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion is unopposed.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that